



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

400 Seventh Street, S.W.
Washington, D.C. 20590

DEC 7 2004

E. A. Altemos
HMT Associates, L.L.C.
603 King Street, Suite 300
Alexandria, Va 22314-3105

Dear Mr. Altemos:

This is in response to your October 26, 2004 application for exemption (14000-N), on behalf of Arch Chemicals, Inc. Norwalk, CT. Your application is returned herewith because it failed to meet the requirements of 49 CFR § 107.105 for the following reason:

The application does not provide sufficient justification for the proposed changes of criteria for hazardous substances. The amount of the hazardous material in a package that exceeds the reportable quantity (RQ) is established by the U. S. Environmental Protection Agency. The U. S. Department of Transportation does not set the criteria regarding the RQs of hazardous substances.

If you have questions, please contact me at (202)366-4535.

Sincerely,

R. Ryan Posten
Exemptions Program Officer
Office of Hazardous Materials
Exemptions & Approvals

TRACKING NO: 2004100731